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Could California become the first state to require Tesla charging stations to open to all EVs?

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Hopping in a Tesla and driving from San Francisco to downtown Los Angeles has gotten easier as charging stations along Interstate 5 rapidly expand. The trip now takes about eight hours, including two charging stops that double as meal and bathroom breaks.

But making the same road trip in another type of electric vehicle can be problematic due, in large part, to a lack of access to fast-charging stations, according to a new EV road trip planning tool The Chronicle launched Thursday.

* Tesla vs. gas cars: Here's how popular EVs perform on a California road trip

For example, it takes nine hours to make the same trip in a Chevy Bolt or Ford F-150 Lightning truck, the paper found, including an additional stop and much longer wait times to charge given a lack of fast chargers.

The comparison illustrates a problem that legislators, environmentalists and auto-industry experts say has become increasingly apparent: Sales of all electric vehicles are soaring, but the vast charging infrastructure gap between Tesla and its competitors only seems to have widened over time.

Tesla operates chargers that are only compatible with its vehicles. Its stations use a plug that exclusively works with its cars, and drivers use an integrated payment system within the car.

Electric-car advocates say it's a problem that raises concerns about economic inequities in the transition to clean cars because many middle- and lower-income drivers can't buy pricey Teslas, which go for $43,900 at the cheapest.

Now, a California legislator is attempting to solve the problem by forcing Tesla and other station operators to open their networks to all drivers. Assembly Member Jesse Gabriel has unveiled a bill that would require new public stations to be accessible to all drivers and have universal connecting ports.

The bill, if approved by the Legislature and Gov. Gavin Newsom, would expand on Tesla's recent announcement that it will open a portion of its chargers to non-Tesla drivers.

Last month, Tesla and the White House announced that it would make at least 7,500 chargers available to all types of electric vehicles by the end of 2024, including 3,500 new and existing superchargers along highways scattered across the country — a partnership that allows Tesla to receive gobs of federal funding to help build more chargers.

Gabriel said his proposal, AB591, is designed to make the company move faster in opening its charging network, so the state can ensure all drivers are included in the state's rapid shift to zero-emissions vehicles.

"It can't just be something that works for the elite and the wealthy," said Gabriel, a Democrat from Los Angeles County who drives a Tesla Model 3. "We're hoping to get there a little faster than the White House. We have to get to a point where charging your EV is as easy as filling your tank at a gas station."

Tesla and its registered lobbyists in Sacramento did not respond to requests for comment.

CEO Elon Musk tweeted "Tesla Superchargers almost everywhere" on the same day the company announced its agreement with the White House to open some chargers, and Tesla said it would double the size of its U.S. network within two years.

Gabriel's bill would apply to any new charging ports as well as existing charging ports that are significantly retrofitted. It would also require Tesla and other EV charging networks — which commonly require a membership to recharge — to accept credit cards in addition to app payments.

He said he began working on the bill long before the White House's announcement because he's concerned California won't meet ambitious climate targets at its current pace.

The state, under a rule Newsom spearheaded, will require that most new cars sold in California be zero-emission by 2035. The rule includes interim benchmarks: 35% of new vehicles must be fully electric or plug-in hybrid by model year 2026.

Electric vehicles accounted for nearly 19% of all new vehicles

In California, Tesla has by far the largest market share of any electric vehicle, accounting for about 73% of models sold. Tesla's market share of new sales has dropped slightly. Still, there are about three Tesla Superchargers for every two similar chargers from other companies, such as EVgo and Electrify America, according to the U.S. Department of Energy.

Tesla's Model 3, its most popular car, has an estimated battery range of 315 miles and a starting price of $43,990. By comparison, the Chevy Bolt has a range of 259 miles and starting price of $25,600; the Ford F-150 Lightning has a base range of 240 miles and starts at $55,974. Those prices don't reflect the final price after various rebates and tax incentives that many buyers receive.

Environmentalists and electric-car experts say they fear the transition to clean cars could lose steam if there aren't enough publicly accessible chargers for lower-priced models.

Alvaro Sanchez, vice president of policy at the Greenlining Institute, an environmental advocacy group sponsoring AB591, said low-income communities and communities of color have, so far, been the least likely to benefit from clean transportation. He said the barrier for many is uncertainty about whether they will be able to charge, especially those who live in an apartment or condo without the ability to charge where they park.

"The goal is to try to eliminate that huge barrier," Sanchez said. "We need to build so many charging stations in order to be able to have a full electric fleet in California."

Battery range anxiety — the fear of winding up stranded on the side of the road without any juice — has long been a major hurdle for the electric-car market. Gil Tal, director of the electric vehicle research center at UC Davis, said what distinguished Tesla early on was its ability to ease that fear with a reliable, user-friendly network of fast chargers, which allow recharging of about 80% of a battery in 30 minutes or less, compared with several hours for stations typically installed in homes and public parking lots.

"Tesla did something that no one else was doing, giving their customers a very good experience," he said.

Tal said day-to-day range anxiety has dissipated for many drivers as battery range increases and charging networks of all types expand, allowing most drivers to commute to work and run errands around town on a single charge. He said the critical hurdle for non-Tesla drivers is having the confidence they can make the same weekend road trips

But Gabriel's bill, which has not received a hearing yet, could face fervent opposition from Tesla and other companies that operate membership charging stations.

Marc Geller, who lives in San Francisco and helped found Plug In America, a national advocacy group for electric-car drivers, said while he's happy to see Tesla voluntarily open up some of its chargers to the wider public, he worries about forcing the company to go further right now.

"Until I see that the other carmakers are truly stepping up to the plate, we ought not hobble the one company that

is really successfully putting EVs on the road, including for an increasingly wide variety of people," he said.

Geller said while policymakers are focused on public charging ports, the more meaningful way to ensure equity is to help more drivers access charging at home, including by requiring power outlets with cheaper utility-rate energy at every parking spot built for new housing.

"That's how you serve everybody," he said. "Anyone who has parking at home or work should be served by slow power at utility rates."

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